MASTER SERVICES AGREEMENT

Contract No. LHP-OBS-2022-01

This MASTER SERVICES AGREEMENT (this "Agreement") is entered into as of February 1, 2022 (the "Effective Date") by and between LARKSPUR HEALTH PARTNERS, INC., a New York corporation with its principal office at 400 Tillary Court, Brooklyn, New York 11201 ("Client"), and OSTRANDER BILLING SOLUTIONS LLC, a Delaware limited liability company with its principal office at 410 Wexley Commons Drive, Suite 300, Hartford, Connecticut 06106 ("Vendor"). Client and Vendor are each referred to as a "Party" and together as the "Parties".

RECITALS

WHEREAS, Client operates a group of outpatient clinics in the State of New York and is a "covered entity" as that term is defined under the Health Insurance Portability and Accountability Act of 1996, as amended, and its implementing regulations;

WHEREAS, Vendor provides revenue-cycle management and medical billing services to healthcare providers;

WHEREAS, Client wishes to engage Vendor to provide such services for each of Client's clinics, and Vendor wishes to provide such services, on the terms and subject to the conditions of this Agreement; and

WHEREAS, contemporaneously with the execution of this Agreement the Parties are entering into a Business Associate Agreement effective as of the Effective Date (the "BAA"), which forms part of this Agreement;

NOW, THEREFORE, in consideration of the mutual covenants set forth herein and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. DEFINITIONS

Capitalized terms used in this Agreement have the meanings set out below or where they are first defined in the text.

1.1 "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party, where "control" means ownership of more than fifty percent (50%) of the voting interests of the entity.

1.2 "Applicable Law" means all federal, state and local laws, rules and regulations applicable to a Party or to the Services, including HIPAA, the HITECH Act, the New York General Business Law (including Section 899-aa and Section 899-bb), the New York Public Health Law, and the rules of any Governmental Authority.

1.3 "BAA" has the meaning given in the Recitals, as the same may be amended from time to time.

1.4 "Business Day" means any day other than a Saturday, a Sunday, or a day on which banks in the State of New York are authorized or required by law to close.

1.5 "Client Data" means all data and information, in any form or medium, that is provided by or on behalf of Client to Vendor, or that is created, received, collected, maintained or transmitted by Vendor in connection with the Services, including all Protected Health Information, all Personal Information, all claims, remittance, eligibility and statement files, and all derivatives, exports, extracts and copies of any of the foregoing.

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1.6 "Client Systems" means the computer systems, networks and applications owned, leased or operated by or for Client, other than Vendor Systems.

1.7 "Confidential Information" has the meaning given in Section 8.1.

1.8 "Deliverables" means all reports, files, extracts and other materials furnished by Vendor to Client in the course of the Services.

1.9 "Documentation" means Vendor's user guides and specifications for the Vendor Platform.

1.10 "discovery" and "discovered", with respect to a Security Incident, mean the first day on which the Security Incident is known to Vendor or, by exercising reasonable diligence, would have been known to Vendor or to any employee, officer, Subcontractor or agent of Vendor. A Security Incident is discovered when Vendor knows or reasonably should know of the Security Incident, whether or not Vendor has yet determined its scope, its cause or the identity of the persons or data affected.

1.11 "Fees" means the fees set out in Exhibit A (Fees) and in any SOW.

1.12 "Governmental Authority" means any federal, state or local court, agency, department, commission or other governmental or regulatory body, including the U.S. Department of Health and Human Services and its Office for Civil Rights, and the Attorney General of the State of New York.

1.13 "HIPAA" means the Health Insurance Portability and Accountability Act of 1996, the Health Information Technology for Economic and Clinical Health Act, and the regulations at 45 C.F.R. Parts 160 and 164, each as amended.

1.14 "Personal Information" means any information that identifies or relates to an identified or identifiable natural person, including "private information" as defined in New York General Business Law Section 899-aa.

1.15 "Protected Health Information" or "PHI" has the meaning given in 45 C.F.R. § 160.103, limited to information created, received, maintained or transmitted by Vendor on behalf of Client.

1.16 "Security Incident" means any actual or reasonably suspected (a) unauthorized access to, or acquisition, use, disclosure, modification, encryption, corruption or loss of, Client Data; or (b) compromise of, or unauthorized access to, any Vendor System that stores, processes or transmits Client Data, including by ransomware or other malicious code. A Security Incident includes a "security incident" as defined in 45 C.F.R. § 164.304 and a "Breach" as defined in the BAA.

1.17 "Services" means the revenue-cycle management services described in Section 2 and in each SOW, together with any related services provided by Vendor under this Agreement.

1.18 "Service Levels" means the service levels set out in Exhibit B (Service Levels).

1.19 "SOW" means a statement of work executed by both Parties that references this Agreement.

1.20 "Subcontractor" means any third party engaged by Vendor to perform any part of the Services or that has access to Client Data.

1.21 "Vendor Platform" means Vendor's hosted revenue-cycle management application and related interfaces.

1.22 "Vendor Personnel" means employees, contractors and agents of Vendor and its Subcontractors.

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1.23 "Vendor Systems" means all computer systems, networks, servers, file servers, storage, applications (including the Vendor Platform), remote access gateways and devices owned, leased, operated or used by or for Vendor or its Subcontractors in connection with the Services.

2. **SERVICES**

2.1 Scope. Vendor shall provide to Client, for each of Client's clinics identified in the applicable SOW, the following Services: (a) charge capture review and coding validation; (b) electronic claims creation, scrubbing and submission to payors; (c) electronic and manual remittance posting; (d) denial management and appeals; (e) patient statement generation, mailing and lockbox services; (f) eligibility and benefits verification; (g) provider credentialing support; and (h) reporting through the Vendor Platform, all as more particularly described in SOW No. 1 dated as of the Effective Date.

2.2 Statements of Work. Additional Services may be ordered by SOW. Each SOW is subject to this Agreement. No SOW may amend Sections 8, 9, 11 or 12 of this Agreement unless it expressly references the Section to be amended and is signed by an officer of each Party.

2.3 Interfaces. The Parties shall exchange charge, demographic, eligibility, remittance and statement files through the secure file transfer interface described in the Documentation.

2.4 Standard of Performance. Vendor shall perform the Services in a diligent, professional and workmanlike manner consistent with the standards of a leading provider of revenue-cycle services to healthcare providers in the United States, in compliance with Applicable Law, payor rules and the Documentation.

2.5 Changes. No change to the Services is effective until documented in a written change order signed by both Parties.

3. **TERM AND RENEWAL**

3.1 Initial Term. This Agreement commences on the Effective Date and continues for an initial term of three (3) years (the "Initial Term"), unless earlier terminated in accordance with Section 14.

3.2 Renewal. Upon expiry of the Initial Term, this Agreement shall renew automatically for successive renewal terms of one (1) year each (each a "Renewal Term", and together with the Initial Term, the "Term"), unless either Party gives the other written notice of non-renewal at least ninety (90) days before the end of the then-current term.

4. **FEES AND PAYMENT**

4.1 Fees. Client shall pay Vendor the Fees set out in Exhibit A. Except as expressly provided in Exhibit A, the Fees are inclusive of all costs and expenses of Vendor in performing the Services.

4.2 Invoices. Vendor shall invoice Client monthly in arrears. Each invoice shall itemize the Fees by clinic and by Service, and shall show any service credits under Exhibit B.

4.3 Payment. Client shall pay each undisputed invoice within forty-five (45) days after receipt. Client may withhold any amount disputed in good faith by written notice describing the dispute in reasonable detail. The Parties shall resolve billing disputes under Section 18.

4.4 Taxes. Fees are exclusive of applicable sales and use taxes.

4.5 Service Credits. Service credits under Exhibit B are a price adjustment reflecting the reduced value of the Services and are not an exclusive remedy, except as expressly provided in Exhibit B.

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5. **CLIENT RESPONSIBILITIES**

5.1 Client shall (a) provide accurate charge, demographic and insurance information; (b) designate a project manager; and (c) respond to Vendor's reasonable requests for information within a reasonable time.

5.2 Client is responsible for the security of Client Systems and of Client's credentials to the Vendor Platform. Nothing in this Section 5 limits Vendor's obligations under Section 9.

6. **PERSONNEL AND SUBCONTRACTORS**

6.1 Vendor Personnel. Vendor shall ensure that all Vendor Personnel with access to Client Data (a) have passed a background check consistent with Applicable Law; (b) have received HIPAA privacy and security training at least annually; and (c) are bound by written confidentiality obligations at least as protective as this Agreement.

6.2 Key Personnel. Vendor shall assign an account executive and a security liaison for Client, and give reasonable prior notice of any change.

6.3 Subcontractors. Vendor shall not subcontract any Services involving access to Client Data without Client's prior written consent. Vendor shall flow down to each Subcontractor obligations at least as protective as Sections 8 and 9 and the BAA, and remains fully responsible for the acts and omissions of its Subcontractors as if they were its own.

6.4 Offshore Access. Vendor shall not permit Client Data to be stored, processed or accessed outside the United States without Client's prior written consent.

7. **SERVICE LEVELS**

7.1 Vendor shall meet or exceed the Service Levels in Exhibit B. Vendor shall report its performance against the Service Levels monthly.

7.2 If Vendor fails to meet a Service Level, Vendor shall (a) promptly investigate and report the root cause; (b) use commercially reasonable efforts to correct the failure; and (c) issue the applicable service credit.

7.3 A failure of the Services caused by a Security Incident is not excused by Section 21.4 (Force Majeure) unless Vendor was at the time in full compliance with Section 9 and Exhibit C.

8. **CONFIDENTIALITY**

8.1 Definition. "Confidential Information" means all non-public information disclosed by or on behalf of a Party (the "Discloser") to the other Party (the "Recipient") that is designated as confidential or that a reasonable person would understand to be confidential, including the terms of this Agreement. All Client Data is Client's Confidential Information.

8.2 Obligations. The Recipient shall (a) use the Discloser's Confidential Information only to perform its obligations or exercise its rights under this Agreement; (b) not disclose it except to its personnel and advisers who need to know it and are bound by obligations of confidentiality; and (c) protect it with at least the degree of care it uses for its own information of like kind and never less than reasonable care.

8.3 Exceptions. The obligations in Section 8.2 do not apply to information that (a) is or becomes public other than through breach of this Agreement; (b) was known to the Recipient without restriction before disclosure; (c) is independently developed without use of the Discloser's information; or (d) is rightfully received from a third party without restriction. Exceptions (a) through (d) do not apply

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to PHI.

8.4 Compelled Disclosure. The Recipient may disclose Confidential Information to the extent required by law, after prompt notice to the Discloser where lawful.

8.5 Equitable Relief. A breach of this Section 8 or of Section 9 may cause irreparable harm, and the Discloser may seek injunctive relief without bond.

9. **DATA SECURITY**

9.1 Security Program. Vendor shall establish, implement and maintain a comprehensive written information security program containing administrative, technical and physical safeguards that (a) comply with the HIPAA Security Rule at 45 C.F.R. Part 164, Subpart C, and with New York General Business Law Section 899-bb; (b) meet the requirements of Exhibit C (Security Requirements); and (c) are no less rigorous than generally accepted industry standards for the protection of health information. Vendor shall review and update the program at least annually.

9.2 Encryption. Vendor shall encrypt all Client Data (a) in transit over any network, using Transport Layer Security version 1.2 or higher or an equivalent or stronger protocol; and (b) at rest, wherever stored, including in databases, file servers, file shares, backup media, portable media, data exports and extracts, and staging, development or test environments, using AES with a key length of at least 256 bits or an equivalent or stronger standard, such that the Client Data is rendered unusable, unreadable or indecipherable to unauthorized persons within the meaning of the guidance issued by the Secretary of Health and Human Services under 42 U.S.C. § 17932(h). Vendor shall manage encryption keys separately from the encrypted data. No temporary, transitional or operational designation of any Vendor System relieves Vendor of the obligations in this Section 9.2.

9.3 Access Controls; Vulnerability Management. Vendor shall (a) limit access to Client Data to Vendor Personnel who need such access to perform the Services; (b) require multi-factor authentication for all remote access to Vendor Systems and for all privileged accounts; (c) remediate vulnerabilities in Vendor Systems within the time periods specified in Exhibit C; and (d) maintain endpoint detection and response and centralized logging on all Vendor Systems that store or process Client Data.

9.4 Notice of Security Incident. Vendor shall notify Client in writing of any Security Incident without undue delay, and in any event within seventy-two (72) hours after discovery. Such notice shall be given in accordance with Section 20 and, in addition, by email to each of the Client contacts listed in Part 4 of Exhibit C. Telephone contact, conversations with Client personnel and postings on any status page do not constitute notice for purposes of this Section 9.4. The notice shall include, to the extent known at the time and supplemented promptly as further information becomes available: (a) the date and time of discovery and the date or estimated date of the Security Incident; (b) a description of the nature of the Security Incident and the Vendor Systems involved; (c) the categories and approximate volume of Client Data and the number of individuals involved or reasonably believed to be involved; (d) whether Client Data was or may have been acquired or exfiltrated; (e) the steps Vendor has taken and will take to contain, investigate and remediate the Security Incident; and (f) the name and contact information of a Vendor representative with authority to act for Vendor in respect of the Security Incident. Vendor shall not delay notice on the ground that its investigation is incomplete.

9.5 Investigation and Cooperation. Following discovery of a Security Incident, Vendor shall at its own cost (a) promptly contain, investigate and remediate the Security Incident; (b) preserve all relevant

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logs, images and other evidence; (c) provide Client with regular written updates, not less than twice weekly during the first thirty (30) days; (d) permit Client and any forensic examiner engaged by or on behalf of Client or its counsel reasonable access to Vendor Systems, logs, forensic images, personnel and the reports of Vendor's own forensic investigators; and (e) deliver to Client copies of all forensic reports relating to the Security Incident, subject to reasonable redaction of information relating solely to other Vendor clients.

9.6 Notifications to Third Parties. As between the Parties, Client shall have sole control over the content, timing and method of any notification to affected individuals, Governmental Authorities, the media or consumer reporting agencies relating to Client Data. Vendor shall not make any such notification relating to Client Data without Client's prior written approval, except as required by Applicable Law.

9.7 Audits. No more than once in any twelve (12) month period (and at any time following a Security Incident), Client or its designee may, on fifteen (15) Business Days' notice, audit Vendor's compliance with this Section 9 and Exhibit C. Vendor shall also deliver to Client each year a copy of its most recent SOC 2 Type II report or equivalent independent certification and a summary of any exceptions noted and their remediation.

9.8 Return and Destruction. Upon expiry or termination of this Agreement, or upon Client's written request, Vendor shall return all Client Data to Client in a mutually agreed format and thereafter securely destroy all copies in accordance with NIST Special Publication 800-88, and certify such destruction in writing.

9.9 Costs. Except as provided in Section 11, each Party shall bear its own costs of performing its obligations under this Section 9. Vendor shall bear all costs of its own investigation, containment and remediation of any Security Incident affecting Vendor Systems.

10. REPRESENTATIONS AND WARRANTIES

10.1 Mutual. Each Party represents and warrants that (a) it is duly organized and in good standing; (b) it has full power and authority to enter into and perform this Agreement; and (c) its execution and performance of this Agreement will not breach any other agreement by which it is bound.

10.2 Vendor. Vendor represents and warrants that (a) the Services will be performed in accordance with Section 2.4 and the Documentation; (b) the Vendor Platform will not contain any virus, ransomware, time bomb or other malicious code introduced by Vendor; (c) neither Vendor nor any Vendor Personnel is excluded from participation in any federal healthcare program; (d) Vendor complies, and will comply throughout the Term, with Section 9, Exhibit C and the BAA; and (e) all information Vendor provided in Client's vendor security questionnaire dated November 18, 2021 was true and complete when given.

10.3 Disclaimer. EXCEPT AS EXPRESSLY SET OUT IN THIS AGREEMENT, NEITHER PARTY MAKES ANY OTHER WARRANTY, EXPRESS OR IMPLIED.

11. INDEMNIFICATION

11.1 By Vendor. Vendor shall defend, indemnify and hold harmless Client, its Affiliates and their respective directors, officers, employees and agents (the "Client Indemnitees") from and against any and all losses, liabilities, damages, judgments, settlements, fines, penalties, costs and expenses (including reasonable attorneys' fees) ("Losses") arising out of or relating to:

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(a) any claim by a third party that the Services, the Vendor Platform or any Deliverable infringes or misappropriates any patent, copyright, trademark or trade secret;

(b) the gross negligence, willful misconduct or violation of Applicable Law of Vendor or any Vendor Personnel; and

(c) any breach by Vendor of Section 9 (Data Security) or of the BAA, and any Security Incident involving Client Data in the possession, custody or control of Vendor or any Subcontractor, including any third-party claim arising therefrom and including, whether or not any third-party claim is asserted, the following costs incurred by Client: (i) the cost of providing notice to affected individuals, Governmental Authorities, the media and others as required by Applicable Law or as reasonably determined by Client; (ii) the cost of credit monitoring and identity restoration services for affected individuals for a period of not less than twelve (12) months, or such longer period as is required by Applicable Law, demanded by a Governmental Authority or reasonably determined by Client to be appropriate; (iii) the cost of establishing and operating a call center for affected individuals; (iv) the cost of forensic investigation of the Security Incident by an independent examiner engaged by or on behalf of Client or its counsel; (v) fines and penalties imposed by a Governmental Authority, to the extent permitted by Applicable Law; and (vi) reasonable attorneys' fees and costs.

11.2 By Client. Client shall defend, indemnify and hold harmless Vendor and its directors, officers and employees from and against Losses arising out of any third-party claim to the extent caused by (a) Client's breach of Applicable Law in its own use or disclosure of PHI; or (b) the gross negligence or willful misconduct of Client.

11.3 Procedure. The indemnified Party shall (a) give the indemnifying Party prompt written notice of any claim for which indemnification is sought, provided that a failure or delay in giving notice relieves the indemnifying Party of its obligations only to the extent it is materially prejudiced thereby; (b) permit the indemnifying Party to control the defense and settlement of any third-party claim, provided that the indemnifying Party shall not settle any claim that imposes any obligation or admission on the indemnified Party without its prior written consent; and (c) provide reasonable cooperation at the indemnifying Party's expense. The indemnified Party may participate with counsel of its own choosing at its own cost. Where the claim involves PHI or a Governmental Authority, Client may elect to control the response itself, at Vendor's cost.

11.4 Payment. Amounts payable under Section 11.1(c) for costs incurred by Client shall be paid within thirty (30) days after Client's written demand accompanied by reasonable supporting documentation.

12. LIMITATION OF LIABILITY

12.1 Exclusion of Consequential Damages. EXCEPT AS PROVIDED IN SECTION 12.3, IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, EXEMPLARY OR PUNITIVE DAMAGES, OR FOR ANY LOSS OF PROFITS OR REVENUE, ARISING OUT OF OR RELATING TO THIS AGREEMENT, WHETHER IN CONTRACT, TORT OR OTHERWISE, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

12.2 Cap. EACH PARTY'S TOTAL CUMULATIVE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT, WHETHER IN CONTRACT, TORT OR OTHERWISE, SHALL NOT EXCEED THE TOTAL FEES PAID OR PAYABLE BY CLIENT TO VENDOR

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UNDER THIS AGREEMENT DURING THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

12.3 Exceptions. The exclusions and limitations in Sections 12.1 and 12.2 shall not apply to: (a) Client's obligation to pay undisputed Fees; (b) Vendor's obligations under Section 11.1(a); (c) Losses arising from a Party's gross negligence, fraud or willful misconduct; or (d) a Party's breach of Section 8 (Confidentiality), other than a breach arising from a Security Incident, which shall remain subject to Sections 12.1 and 12.2.

12.4 [Reserved.]

12.5 Allocation of Risk. The Parties acknowledge that the Fees reflect the allocation of risk in this Section 12 and that neither Party would have entered into this Agreement without these limitations.

13. **INSURANCE**

13.1 Vendor shall maintain throughout the Term and for three (3) years thereafter, with insurers rated A- VII or better by a nationally recognized rating agency: (a) commercial general liability insurance of not less than USD 1,000,000 per occurrence and USD 2,000,000 in the aggregate; (b) professional (errors and omissions) liability insurance of not less than USD 2,000,000 per claim; (c) cyber liability and privacy insurance, including coverage for notification costs, credit monitoring, regulatory fines (where insurable) and network security liability, of not less than USD 3,000,000 per claim and in the aggregate; and (d) workers' compensation insurance as required by law.

13.2 Vendor shall deliver certificates of insurance on request. Vendor's insurance does not limit its liability under this Agreement.

14. **TERMINATION**

14.1 For Convenience. Client may terminate this Agreement or any SOW for convenience on one hundred eighty (180) days' written notice.

14.2 For Cause. Either Party may terminate this Agreement on written notice if the other Party materially breaches this Agreement and fails to cure the breach within thirty (30) days after written notice describing it.

14.3 Security Breach. Client may terminate this Agreement immediately on written notice, without any cure period and without liability, if (a) Vendor breaches Section 9 or the BAA in any material respect; or (b) a Security Incident affecting Client Data results from Vendor's failure to comply with Exhibit C.

14.4 Insolvency. Either Party may terminate this Agreement on written notice if the other Party becomes insolvent or the subject of bankruptcy proceedings not dismissed within sixty (60) days.

14.5 Effect. Upon expiry or termination, Client shall pay Fees for Services performed through the effective date of termination, and Vendor shall comply with Sections 9.8 and 15.

15. **TRANSITION ASSISTANCE**

15.1 For up to six (6) months after expiry or termination, Vendor shall provide the transition assistance Client reasonably requests, including continued Services at the then-current Fees and transfer of open work queues.

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15.2 Vendor shall not withhold transition assistance or Client Data on account of any dispute, including a dispute concerning Fees.

16. **RECORDS AND AUDIT OF FEES**

16.1 Vendor shall keep accurate records of the Services and Fees for the Term and six (6) years thereafter, which Client may audit on reasonable notice. Vendor shall promptly refund any overcharge, and shall bear the audit cost if the overcharge exceeds five percent (5%).

17. **COMPLIANCE WITH LAWS**

17.1 Each Party shall comply with all Applicable Law in the performance of this Agreement, and Vendor shall comply with all payor billing rules applicable to the Services.

17.2 Vendor shall promptly notify Client of any inquiry, investigation or audit by a Governmental Authority or payor that relates to the Services or Client Data, except where such notice is prohibited by law.

18. **DISPUTE RESOLUTION**

18.1 Executive Escalation. Any dispute arising out of or relating to this Agreement shall first be referred, by written notice from either Party (a "Dispute Notice"), to a senior executive of each Party with authority to settle the dispute. The executives shall meet (in person or by videoconference) within fifteen (15) Business Days after the Dispute Notice and attempt in good faith to resolve the dispute.

18.2 Litigation. If the dispute is not resolved within thirty (30) days after the Dispute Notice, either Party may commence proceedings in the state or federal courts located in the County of New York, State of New York, and each Party irrevocably submits to the exclusive jurisdiction of those courts. EACH PARTY WAIVES ITS RIGHT TO A JURY TRIAL.

18.3 Interim Relief. Nothing in this Section 18 prevents a Party from seeking interim or injunctive relief at any time, including relief to protect Client Data.

18.4 Continued Performance. Vendor shall continue to perform the Services during any dispute.

19. **GOVERNING LAW**

19.1 This Agreement, and any dispute arising out of or relating to it, is governed by the laws of the State of New York, without regard to its conflict-of-laws principles.

20. **NOTICES**

20.1 All notices under this Agreement shall be in writing and shall be delivered to the addresses below (or such other address as a Party designates by notice):

If to Client:
Larkspur Health Partners, Inc.
400 Tillary Court
Brooklyn, New York 11201
Attention: General Counsel
Email: legalnotices@larkspurhealth.example
with a copy (which shall not constitute notice) to the Privacy Officer at the same address, privacy@larkspurhealth.example

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If to Vendor:
Ostrander Billing Solutions LLC
410 Wexley Commons Drive, Suite 300
Hartford, Connecticut 06106
Attention: Chief Operating Officer
Email: legal@ostranderbilling.example

20.2 A notice is effective (a) upon personal delivery; (b) one (1) Business Day after deposit with a nationally recognized overnight courier, charges prepaid; or (c) upon transmission by email, if sent before 5:00 p.m. (recipient's local time) on a Business Day and a copy is sent on the same day by overnight courier, and otherwise on the next Business Day.

21. ASSIGNMENT; FORCE MAJEURE; RELATIONSHIP

21.1 Assignment. Neither Party may assign this Agreement without the prior written consent of the other, except that either Party may assign this Agreement to a successor to all or substantially all of its business on written notice. Any assignment in breach of this Section is void.

21.2 Change of Control. Vendor shall give Client at least thirty (30) days' prior written notice of any change of control of Vendor, and Client may terminate this Agreement on written notice within ninety (90) days after such change of control.

21.3 Independent Contractors. The Parties are independent contractors. Nothing in this Agreement creates a partnership, joint venture or agency relationship.

21.4 Force Majeure. Neither Party is liable for delay or failure to perform caused by events beyond its reasonable control, such as acts of God, war or widespread utility failure, provided it gives prompt notice and uses diligent efforts to resume performance. A Security Incident, including a ransomware attack, is not a force majeure event except as provided in Section 7.3.

22. GENERAL

22.1 Entire Agreement. This Agreement, including its Exhibits, the BAA and each SOW, is the entire agreement of the Parties concerning its subject matter and supersedes all prior proposals and understandings, including Vendor's response to Client's request for proposal dated October 4, 2021.

22.2 Amendment; Waiver. This Agreement may be amended only by a written instrument that refers to this Agreement and is signed by an authorized officer of each Party. No waiver is effective unless in writing, and no failure or delay in exercising any right operates as a waiver.

22.3 Order of Precedence. In the event of any conflict or inconsistency among the documents comprising this Agreement, the following order of precedence applies: (i) the BAA, solely with respect to the use, disclosure and safeguarding of PHI; (ii) any written amendment to this Agreement executed in accordance with Section 22.2, with a later amendment prevailing over an earlier one; (iii) the body of this Agreement; (iv) Exhibit C (Security Requirements); (v) Exhibit B (Service Levels); (vi) Exhibit A (Fees); and (vii) each SOW. A provision that imposes a more stringent obligation on Vendor with respect to the protection of Client Data shall not be deemed to conflict with a less stringent provision on the same subject, and both shall apply.

22.4 Severability. If any provision is held unenforceable, the remaining provisions remain in full force.

22.5 Survival. Sections 1, 8, 9, 11, 12, 13, 15, 16, 18, 19, 20 and 22, and any other provision that by its nature is intended to survive, survive expiry or termination of this Agreement.

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22.6 Publicity. Neither Party shall use the other's name in publicity without consent.

22.7 Third-Party Beneficiaries. Except for the Client Indemnitees, there are no third-party beneficiaries of this Agreement.

22.8 Counterparts; Electronic Signatures. This Agreement may be executed in counterparts, each of which is an original and all of which together are one instrument. Signatures delivered by PDF or by an electronic signature service are effective as originals.

22.9 Interpretation. Headings are for convenience only. "Including" means "including without limitation".

[Signature page follows.]

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SIGNATURE PAGE

IN WITNESS WHEREOF, the Parties have caused this Master Services Agreement to be executed by their duly authorized representatives as of the Effective Date.

LARKSPUR HEALTH PARTNERS, INC.



By: Dr. Celia Fontaine
Title: Chief Executive Officer
Date: January 26, 2022

OSTRANDER BILLING SOLUTIONS LLC



By: Thomas R. Vandermeer
Title: President & Chief Executive Officer
Date: January 28, 2022

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EXHIBIT A — FEES

A.1 The following Fees apply to all eight (8) Client clinics covered by SOW No. 1. Fees are fixed for the Initial Term.

Service	Fee	Basis
Revenue Cycle Management Platform Fee (all clinics)	USD 31,500.00	per month
Claims creation, scrubbing and submission	USD 1.25 per claim	minimum USD 5,000.00 per month
Patient statements, mailing and lockbox	USD 0.55 per statement	per statement mailed or e-delivered
Denial management and appeals	4.0%	of amounts recovered on appealed claims
Provider credentialing support	USD 250.00 per provider	per credentialed provider per month
Implementation and data conversion	USD 45,000.00	one-time, invoiced on go-live

A.2 Statement postage is passed through at cost.

A.3 Service credits under Exhibit B are deducted from the Platform Fee in the invoice for the month following the month in which they accrue.

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EXHIBIT B — SERVICE LEVELS

B.1 Measurement. Service Levels are measured monthly and reported by the tenth (10th) Business Day of the following month.

No.	Service Level	Target	Service credit for a miss
SL-1	Vendor Platform availability (excluding scheduled maintenance of no more than 8 hours per month, notified 5 Business Days in advance)	99.5%	5% of monthly Platform Fee; 10% if below 98.0%
SL-2	Clean claims submitted within 2 Business Days after charge entry	98%	3% of monthly Platform Fee
SL-3	Electronic remittances posted within 3 Business Days after receipt	97%	2% of monthly Platform Fee
SL-4	Patient statements mailed within 5 Business Days after statement cycle date	99%	2% of monthly Platform Fee
SL-5	Severity 1 incident response (acknowledgment)	30 minutes, 24 x 7	2% of monthly Platform Fee

B.2 Cap on Credits. Service credits in any month shall not exceed fifteen percent (15%) of the monthly Platform Fee.

B.3 Chronic Failure. A failure to meet the same Service Level in any three (3) months within a rolling six (6) month period is a material breach for purposes of Section 14.2, and no cure period applies.

B.4 Not Exclusive. Service credits are without prejudice to Client's rights under Sections 11, 14.3 and 18 in respect of any failure caused by a Security Incident.

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EXHIBIT C — SECURITY REQUIREMENTS

Part 1 — Security Program and Assurance

1.1 Vendor shall maintain a written information security program meeting Section 9.1, approved by Vendor's senior management and reviewed at least annually.

1.2 Vendor shall obtain, at its own cost, an annual SOC 2 Type II examination covering the security, availability and confidentiality criteria, or an equivalent independent security certification approved by Client, covering all Vendor Systems that store or process Client Data, and shall deliver the report to Client within thirty (30) days after issuance.

1.3 Vendor shall penetration-test internet-facing Vendor Systems at least annually and remediate findings under Part 2, item 2.4.

Part 2 — Technical Controls

2.1 Encryption. All Client Data shall be encrypted in transit and at rest as required by Section 9.2. Without limiting Section 9.2, this requirement applies to every file server and file share on which Client claims, remittance, eligibility or statement files are written, whether such files are retained for operational, staging, reconciliation or archival purposes.

2.2 Multi-Factor Authentication. Multi-factor authentication is required for all remote access (including VPN and remote desktop gateways), all administrative and privileged accounts, and all access to the Vendor Platform from outside Vendor's network. Service accounts shall not be permitted interactive remote access.

2.3 Privileged Access. Privileged accounts shall be individually assigned, reviewed quarterly and monitored. Shared administrative credentials are prohibited.

2.4 Vulnerability and Patch Management. Vendor shall maintain an inventory of all Vendor Systems and shall apply security patches or equivalent mitigations: (a) for vulnerabilities rated critical (CVSS base score 9.0 or higher), within fourteen (14) days after the patch or mitigation is made available by the manufacturer; (b) for vulnerabilities rated high (CVSS 7.0 to 8.9), within thirty (30) days; and (c) for all other vulnerabilities, within ninety (90) days. Internet-facing systems, including remote access appliances, shall be prioritized. Any exception requires the written approval of Vendor's security liaison and written notice to Client's Chief Information Security Officer.

2.5 Endpoint Detection and Response. Vendor shall deploy endpoint detection and response tooling on all servers and endpoints that store, process or can access Client Data, with alerts monitored 24 x 7.

2.6 Logging. Vendor shall log authentication events, administrative actions, remote access sessions, file access on systems holding Client Data and outbound network connections, and shall retain such logs for at least one (1) year, with at least ninety (90) days immediately available for analysis.

2.7 Backups. Vendor shall maintain encrypted, immutable or logically isolated backups of all Client Data and of the Vendor Platform, tested at least quarterly.

2.8 Segmentation. Systems holding Client Data shall be segmented from Vendor's corporate network and from systems holding data of other Vendor clients, with access controlled by firewall rules reviewed at least semi-annually.

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2.9 Data Minimization and Retention. Vendor shall retain claims, remittance, eligibility and statement export files on file servers for no longer than thirty (30) days after the file has been processed, after which they shall be securely deleted, unless Client instructs otherwise in writing.

Part 3 — Personnel

3.1 Vendor Personnel with access to Client Data shall complete security training at onboarding and annually.

3.2 Access shall be revoked within twenty-four (24) hours after the termination of any Vendor Personnel.

Part 4 — Security Incident Notification Contacts

4.1 Notices under Section 9.4 shall be sent, in addition to notice under Section 20, by email to each of the following:

Role	Email	Telephone
Privacy Officer	privacy@larkspurhealth.example	(718) 555-0124
Chief Information Security Officer	security@larkspurhealth.example	(718) 555-0131
General Counsel	legalnotices@larkspurhealth.example	(718) 555-0115
Security Operations (24 x 7)	security@larkspurhealth.example	(718) 555-0190

4.2 Client may update these contacts by email notice to Vendor's security liaison. Vendor's security liaison for Client is its Director of Information Security, reachable at security@ostranderbilling.example and (860) 555-0174.

[End of Exhibit C]

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